

SENATE BILL 1441

By Powers

AN ACT to amend Chapter 232 of the Private Acts of 1953; as amended by Chapter 233 of the Private Acts of 1953; Chapter 164 of the Private Acts of 1955; Chapter 157 of the Private Acts of 1957; Chapter 276 of the Private Acts of 1961; Chapter 281 of the Private Acts of 1963; Chapter 12 of the Private Acts of 1967; Chapter 62 of the Private Acts of 1979 and Chapter 66 of the Private Acts of 1995; and any other acts amendatory thereto, relative to the general sessions court of Montgomery County.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 232 of the Private Acts of 1953, as amended by Chapter 164 of the Private Acts of 1955, Chapter 157 of the Private Acts of 1957, Chapter 276 of the Private Acts of 1961, Chapter 281 of the Private Acts of 1963, Chapter 12 of the Private Acts of 1967, Chapter 62 of the Private Acts of 1979, Chapter 66 of the Private Acts of 1995, and all other acts amendatory thereto, is amended to create a fifth division of the General Sessions and Juvenile Courts of Montgomery County, Tennessee. The said fifth division shall have the same terms of court and the same jurisdiction and powers as are now exercised by the General Sessions and Juvenile Courts of Montgomery County, Tennessee.

SECTION 2. Be it further enacted that the office of the fifth General Sessions and Juvenile Courts Judge is hereby created, which shall be filled by an appointee hereinafter to be named until the election of the Judge to fill such office as hereinafter provided, and the said fifth General Sessions and Juvenile Courts Judge to be so appointed or selected and his or her successors in office shall sit and hold Court regularly in Division Five thereof.

SECTION 3. Be it further enacted, that the county legislative body of Montgomery County shall appoint a person qualified under the law to fulfill the office hereby created of the General Sessions and Juvenile Courts Judge of Division Five, who shall hold office until September 1, 2026, and until his or her successor is elected and qualified. At the regular August election in 2026, a person qualified under the law shall be elected to serve until

September 1, 2030, or until his or her successor is elected and qualified. At the regular August election in 2030, a person qualified under the law shall be elected for a term of eight (8) years until his or her successor is elected and qualified. At each succeeding judicial election thereafter a judge for Division Five shall be elected for eight-year terms.

SECTION 4. Be it further enacted that the Judge of the Fifth Division of the General Sessions and Juvenile Courts of Montgomery County, Tennessee, shall have the same qualifications and exercise the same powers and jurisdiction and receive the same compensation as do other General Sessions and Juvenile Court Judges of Montgomery County, Tennessee.

SECTION 5. Be it further enacted that the County Commission of Montgomery County, Tennessee, shall furnish the necessary supplies and furnishings for the Fifth Division, and shall furnish a suitable and separate courtroom, and the Sheriff of the County shall in person or by deputy attend the Fifth Division when it is in session.

SECTION 6. Be it further enacted, that the office, powers, and duties and responsibilities of the Clerk of the General Sessions and Juvenile Courts shall be enlarged to include the work of Division Five, and the Clerk of his or her deputy shall attend Division Five when it is in session.

SECTION 7. Chapter 66 of the Private Acts of 1995, and all other acts amendatory thereto, is amended by deleting from Section 7 the following language:

and the position of presiding judge shall rotate between the judge of Division One of the General Sessions and Juvenile Courts of Montgomery County, Tennessee, Division Two and Division Three every three years.

and substituting:

and the position of presiding judge shall rotate between the judge of Division One, Division Two, Division Three, Division Four, and Division Five of the General Sessions and Juvenile Courts of Montgomery County, Tennessee, every five (5) years.

SECTION 8. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the county legislative body of Montgomery County. Its approval or non-approval shall be proclaimed by the presiding officer of the county legislative body and certified to the Secretary of State.

SECTION 9. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes it shall become effective upon being approved as provided in Section 8.